☒ **District Court** ☐ Denver Juvenile Court **Delta** County, Colorado Court Address: 501 Palmer Street, Suite 338, Delta, CO 81416	▲ **COURT USE ONLY** ▲
Petitioner: PETE McCARTHY, *v.* **Respondent:** SAMIRA M. VETTER, in her official capacity as Town Clerk of the Town of Paonia, Colorado.	**Case Number:** _____ **Division:** _____ **Courtroom:** _____
Attorney or Party Without Attorney (Name and Address): Pete McCarthy, 119½ Dorris Avenue, Paonia, CO 81428 Phone Number: (415) 623-9773 E-mail: petefromsf@gmail.com FAX Number: N/A Atty. Reg. #: *Pro Se*	

EXHIBIT E

Town Clerk Rejection Letter — April 27, 2026

Letter from Samira M. Vetter, CMC, Town Clerk, to Peter McCarthy and Melayna Rosa, dated April 27, 2026, rejecting "Surveillance Policy Ordinance" (received April 20, 2026). Letter contains a copy-paste error in the body referencing "Paonia Short-Term Lodging Policy" (an unrelated separate initiative).

1 page.

Town of Paonia
Office of the Town Clerk
Samira M Vetter, CMC
214 Grand Ave.
P.O. Box 460
Paonia, CO 81428
O: (970) 527-4101
C: (970) 742-4658

April 27, 2026

Peter McCarthy
Melayna Rosa
119 ½ Dorris Ave
Paonia, CO 81428

Re: Citizen Initiative Petition – Surveillance Policy Ordinance

Mr. McCarthy and Ms. Rosa,

I received your submission of a Citizen Initiative Petition for 'Paonia Short-Term Lodging Policy' on April 20, 2026.

The Ballot measure is hereby rejected. Please see the following explanation.

The subject of Surveillance on Public Property is a managerial and operational function of Town property, which is beyond the scope of citizen-initiated measures. Actions taken by a municipality to manage public spaces and rights-of-way, including monitoring and surveillance, are administrative in nature. The proposed ballot initiative seeks to control administrative actions by the Town, and the implementation of the proposal would require existing contractual obligations to be rescinded or modified. The formation, content, and amendment of contracts to which a Town is a party to further its policies are administrative matters, not suitable for an initiative.

Samira M Vetter, CMC
Paonia Town Clerk